

Multiple Representation, Tenant Acknowledgement & Consent Disclosure

TENANT: (the "Tenant")

BROKERAGE: (the "Brokerage")

REAL PROPERTY: (the "Property")

DEFINITIONS AND INTERPRETATIONS: For the purposes of this Disclosure Form: "Tenant" includes buyer, purchaser, and lessee or a prospective Tenant, buyer, purchaser, and lessee, a "landlord" includes seller, vendor, and lessor or a prospective landlord, seller, vendor, and lessor, and a "real estate board" includes a real estate association. A Lease shall be deemed to include any rental agreement, sub-lease or renewal of a lease. A purchase shall be deemed to include the entering into any agreement to exchange, or the obtaining of an option to purchase which is subsequently exercised. This Disclosure Form shall be read with all changes of gender or number required by the context.

MULTIPLE REPRESENTATION - DUTIES AND SERVICES: The Tenant understands and acknowledges that the Brokerage or a designated representative of the Brokerage must be impartial when representing both the Tenant and the landlord and equally protect the interests of the Tenant and landlord. The Tenant understands and acknowledges that when representing both the Tenant and the landlord, the Brokerage shall have a duty of full disclosure to both the Tenant and landlord.

However, the Tenant further understands and acknowledges that the Brokerage shall not disclose:

- that the Tenant may or will pay more than the listed price, unless otherwise instructed in writing by the Tenant;
- that the landlord may or will accept less than the offered price, unless otherwise instructed in writing by the landlord;
- the motivation of or personal information about the Tenant or landlord, unless otherwise instructed in writing by the party to which the information applies or unless failure to disclose would constitute fraudulent, unlawful or unethical practice;
- the price the Tenant should offer or the price the landlord should accept;
- the Brokerage shall not disclose to the Tenant the terms of any other offer; and
- the Brokerage shall not disclose to the landlord the terms of any other offer by the Tenant.

However, it is understood that factual market information about comparable properties and information known to the Brokerage concerning potential uses for the property will be disclosed to both Tenant and landlord to assist them to come to their own conclusions.

The Brokerage shall not be appointed or authorized to be agent for either the Tenant or the landlord for the purpose of giving and receiving notices where the Brokerage or designated representative represents both the Tenant and the landlord (multiple representation). In the event that the Brokerage has entered into or enters into a landlord representation agreement with a prospective landlord of a property of interest to the Tenant, the Brokerage requires the Tenant's written consent for the Brokerage or a designated representative of the Brokerage to represent both the Tenant and the landlord for the transaction at the earliest practicable opportunity and in all cases prior to any offer to lease being submitted or conveyed.

MULTIPLE REPRESENTATION AND BROKERAGE REPRESENTATION: The Tenant hereby acknowledges that the Brokerage may be entering into or proposes to enter into landlord representation agreements with landlords who may be interested in leasing a property that is of interest to the Tenant and requires the Tenant's written consent to represent more than one client in the same trade.

MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION: The Tenant hereby acknowledges that the Brokerage may be entering into or proposes to enter into landlord representation agreements with landlords who may be interested in leasing a property that is of interest to the Tenant where the designated representative represents both the Tenant and the landlord and requires the Tenant's written consent to represent more than one client in the same trade.

MULTIPLE REPRESENTATION AND DESIGNATED REPRESENTATION AND BROKERAGE REPRESENTATION: The Tenant hereby acknowledges that the Brokerage may be entering into or proposes to enter into landlord representation agreements with landlords who may be interested in leasing a property that is of interest to the Tenant where the designated representative represents the Tenant and the Brokerage represents the landlord or where the Brokerage represents the Tenant and the designated representative represents the landlord and requires the Tenant's written consent to represent more than one client in the same trade.

MULTIPLE REPRESENTATION AND COMPETING TENANTS: In the event that the Brokerage has entered into or enters into a tenant representation agreement with a tenant or prospective tenant who may be interested in a property of interest to the Tenant, the Brokerage requires the Tenant's written consent for the Brokerage or a designated representative of the Brokerage to represent both the Tenant and a competing tenant for the transaction at the earliest practicable opportunity once the Brokerage or the designated representative is aware that multiple representation has occurred.

COMMENTS:

CONSENT FOR MULTIPLE REPRESENTATION

With their initials the Tenant consents to the Brokerage or designated representative representing more than one client in the same transaction.

INITIALS OF TENANT(S)

..... (Authorized to bind the Brokerage) (Date) (Name of Person Signing)

THIS MULTIPLE REPRESENTATION, TENANT ACKNOWLEDGEMENT & CONSENT DISCLOSURE FORM HAS BEEN READ AND FULLY UNDERSTOOD BY ME, I ACCEPT THE TERMS OF THIS MULTIPLE REPRESENTATION, TENANT ACKNOWLEDGEMENT & CONSENT DISCLOSURE FORM.

SIGNED, SEALED AND DELIVERED I have hereunto set my hand and seal:

..... (Signature of Tenant) (Seal) (Date)

..... (Signature of Tenant) (Seal) (Date)